



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

ANSWER AND AFFIRMATIVE DEFENSES

The defendant's written response to a complaint

PLAINTIFF 	CASE NUMBER (UCN) e.g. 26-CF-000123 (YY - TYPE - NUMBER)
VS.	DEFENDANT
Full name of party e.g. Marcus D. Reeves	DIVISION e.g. Civil JUDGE e.g. Hon. Hollis T. Marren CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims

HOW TO USE THIS FORM

Respond to every numbered paragraph of the complaint. Anything you do not deny is treated as ADMITTED. Affirmative defenses are reasons you win even if the plaintiff's facts are true - if you do not raise them here, you lose them. Every box is blank and ready to type in; anything you type appears in black. The small grey "e.g." notes beside each label are only examples of what belongs there.

RESPONDING PARTY

DEFENDANT NAME e.g. Marcus D. Reeves	DATE SERVED WITH COMPLAINT 	ANSWER DUE DATE e.g. 09/11/26
REPRESENTED BY e.g. Asst. P.D. Grant Whitlow	BAR NO. e.g. CW-4472	CONTACT HANDLE e.g. mreeves

PART I - RESPONSE TO ALLEGATIONS

For each numbered paragraph of the complaint, write ADMITTED, DENIED, or WITHOUT KNOWLEDGE. You may group consecutive paragraphs that get the same response.

PARAGRAPH NO(S).	RESPONSE	EXPLANATION (OPTIONAL)

e.g. 1-4 | ADMITTED | Admitted only as to the date and location

PART II - AFFIRMATIVE DEFENSES

DEFENSES RAISED

- ☐ Statute of limitations has expired
- ☐ Assumption of risk
- ☐ Payment or accord and satisfaction
- ☐ Lack of jurisdiction over this defendant
- ☐ Insufficient service of process
- ☐ Sovereign immunity (government defendant)
- ☐ Comparative negligence of the plaintiff
- ☐ Failure to mitigate damages
- ☐ Release or prior settlement
- ☐ Improper venue
- ☐ Failure to state a cause of action
- ☐ Qualified immunity (individual officer)

STATEMENT OF EACH AFFIRMATIVE DEFENSE

NUMBER EACH DEFENSE AND EXPLAIN THE FACTUAL BASIS

e.g. I paid the deposit in full on 3 June 2026 and the work was never completed.

PART III - COUNTERCLAIM (OPTIONAL)

If you believe the plaintiff owes YOU money arising out of the same events, state your counterclaim here. A separate filing fee applies.

COUNTERCLAIM

STATE THE FACTS AND THE AMOUNT YOU ARE CLAIMING

e.g. On 14 August 2026 at approximately 21:40 hours I observed a white 2018 Vapid Sandstorm, bearing plate CW-4417Q

COUNTERCLAIM AMOUNT

COUNTERCLAIM FILING FEE

JURY TRIAL DEMANDED

THIRD PARTY NAMED

e.g. Gulfline Freight LLC

CERTIFICATE OF SERVICE: I certify a true copy of this Answer was furnished to the plaintiff or plaintiff's counsel by the method and on the date stated below.

METHOD OF SERVICE

e.g. Hand delivery

SERVED ON

e.g. ASA Daniela Ortiz

DATE OF SERVICE

e.g. 08/22/26

DEFENDANT OR COUNSEL

e.g. Grant Whitlow

CLERK OF COURT

Filed

e.g. P. Nakamura, Deputy Clerk

PRINTED NAME

DATE

e.g. 09/10/26

PRINTED NAME

DATE

e.g. 09/10/26